

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

10 U.S.C. § 3204

70Z03825RL0000005

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3, the following facts and rationale justify the use of such authority:

1. Agency and Contracting Activity.

The Department of Homeland Security, United States Coast Guard (USCG), Aviation Logistics Center (ALC), Medium Range Surveillance (MRS) division prepared this justification for other than full and open competition.

2. Nature and/or Description of the Action being Approved.

(a) Nature of the action: The USCG, ALC, MRS Division requests approval to award one (1) Indefinite Delivery, Requirements-type contract on a sole source basis for the procurement of propeller assemblies, spare parts, and components, as needed for the sustainment of the HC-144 Maritime Patrol Aircraft (MPA). Market research revealed only one (1) qualified source with the ability to provide the propeller assemblies, spare parts, and components. Hamilton Sundstrand Corporation is the Original Equipment Manufacturer (OEM) for the parts listed within this requirement.

(b) Name and address of the contractor:

Hamilton Sundstrand Corp.
1 Hamilton Road Dock W.
Windsor Locks CT, 06096-6096
Cage Code 73030

(c) Type of action: Indefinite Delivery, Requirements-type, Firm Fixed Price

(d) Estimated total value (including options): [REDACTED] broken down as follows:

Period		Total
Base Year:	12 mo.	[REDACTED]
Option Year 1	12 mo.	
Option Year 2	12 mo.	
Option Year 3	12 mo.	
Option Year 4	12 mo.	

The products being requested in this requirement were previously awarded under contract 70Z03821DL0000006, and the period of performance ends on December 31, 2025.

(e) Type of funding: Operations and Support funds

(f) Year of funding: Fiscal Year 2026

(g) Solicitation number: 70Z03825RL0000005

(h) Background information about the requirement: The HC-144 MPA is a medium range, twin engine turboprop aircraft used in search and rescue and maritime patrol missions. The procurement of propeller assemblies, spare parts, and components are required to support USCG missions.

3. Description of Supplies/Services.

The propeller assemblies, spare parts, and components are critical for the sustainment of the HC-144 Aircraft. Lack of these critical parts could potentially ground the aircraft, which will negatively affect mission success. The manufacturer, Hamilton Sundstrand Corporation (OEM), owns the data rights and specifications. To ensure compatibility of replacement parts of maintenance, repair, and accessories associated with the HC-144, only Hamilton Sundstrand Corporation will be able to provide these parts. Using other than OEM parts would compromise the integrity of the parts and void any existing warranties.

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C 3204(c), as implemented in the Federal acquisitions Regulation (FAR) 6.302-1, "Only one responsible source and no other supplies or service will satisfy Agency Requirements".

5. Identification of Exception to the Buy American Act.

The clause 52.225-1 Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83) will apply to this requirement.

6. Demonstration that the Proposed Contractor's Unique Qualifications or the Nature of the Acquisition Require Use of the Authority Cited.

- a) In order to maintain structural integrity of the aircraft and ensure complete compatibility, the propeller assemblies, spare parts, and components must be obtained from the OEM or an OEM approved source of supply.

- b) Any use of OEM parts will ensure the propeller assemblies, spares parts, and equipment are manufactured in accordance with OEM specifications and standards, conform to original form, fit, and function, and are compatible and interchangeable with existing components.
- c) Aligned with the goal to maintain the structural integrity and overall compatibility of the aircraft continuing to align with the OEM is recommended as the best course of action. The propeller assemblies, spare parts, and components specified for procurement are considered Critical Safety Items (CSI's). Any deviations from this could create inconsistencies, irregularities, damages and even potentially the grounding of aircraft.
- d) The propeller assemblies, spare parts, and components specified for procurement are considered CSIs. A CSI is a part, assembly, installation or production system with one or more critical characteristics that, if not conforming to the design data or quality requirements, would result in an Insafe condition.
- e) The HC-144 MPA Engineering Officer has determined that the required assemblies are critical for flight and has assigned an Acquisition Method Code (AMC) of 3 and Acquisition Method Suffix Code (AMSC) of C. In accordance with DoD 4100.39 (series) Volume 10, table 71, an AMC of 3 or 5 requires the purchases from the actual manufacturer or prime contractor only. An AMSC of C, Q, or R stipulates engineering source approval by the design control activity in order to maintain the quality of the parts.

7. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.

- (a) A Sources Sought Notice (70Z03825IL0000005) was posted on SAM.gov with a response date of April 30, 2025, at 12pm EST. Only one response was received from EOS-AV. EOS-AV did not provide responses to all of the questions and they did not provide evidence the parts were coming from the OEM. This acquisition is forecasted in the Department of Homeland Security (DHS) Acquisition Planning Forecast System (APFS), number F2025069871 published on April 9, 2025 and can be found at <https://www.apfs.gov>.
- (b) The estimated solicitation release date is July 18, 2025.
- (c) Not Applicable.

8. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The Contracting Officer determines that the anticipated prices will be fair and reasonable in accordance with FAR 13.106-3. The prices will be determined fair and reasonable based

on prior Asset Maintenance Management Information System (AMMIS) prices. The Contracting Officer will also determine fair and reasonable in accordance with the IGCE.

9. Description of Market Research.

- (a) Market research techniques consisted of reviewing AMMIS history database, the Government databases such as General Services Administration (GSA), Federal Logistics repository (FEDLOG) and FEDMALL. These were all reviewed and were determined they did not meet the specified requirements. The OEM is the only approved source to provide the parts and components required. All terms and conditions are not expected to differ from customary terms and conditions in the marketplace or standard Government practices.
- (b) (Section is required to be completed when the J&A includes the exception listed under FAR 25.103(b)(2) or FAR 25.202(a)(2)). Not Applicable
- (c) If market research was not conducted, state why. Not Applicable
- (d) If patents, copyrights, and/or intellectual property are applicable to the acquisition, describe the circumstances for acquiring a patented or copyrighted product on the representation of the intellectual property holder that has not been licensed for resale and consult the Coast Guard IP attorney. Not Applicable

10. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

USCG utilizes eighteen (18) HC-144 MPA's to perform its drug and migrant interdiction, disaster response, and search and rescue missions. The USCG does not own and did not purchase the rights to the initial system acquisitions for the HC-144 and was not provided the opportunity to purchase. The propeller assemblies, spare parts, and components to be procured under this acquisition are highly specialized and the technical data is only available through the OEM; therefore, the USCG cannot foster full and open competition. The manufacturing, performance, and acceptance data are propriety, and the USCG does not possess adequate and appropriate technical data to provide to potential offerors.

11. A Listing of the Sources, if Any, that Expressed, in Writing, an Interest in the Acquisition.

To date, EOS-AV has been the sole response received. However, they did not respond to all the required questions, nor did they provide evidence the parts were coming from the OEM. Any responses received prior to the award of the procurement will be evaluated by the Contracting Officer.

12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

At this time, for reasons set forth in this document, the USCG does not possess the technical data required to foster a full and open competition. The USCG will continually conduct market research to ensure that companies interested in doing business with the USCG are given every opportunity to compete for future USCG requirements. In an effort to increase competition, HC-144 MPA program members will continue to conduct internet database research and ensure procurements are advertised on SAM.gov. In addition, the USCG will investigate the feasibility of purchasing technical data from the OEM. If another potential source emerges, and the USCG is able to obtain the required technical data, the USCG will assess whether competition for any further requirements are feasible.

[REDACTED]

[REDACTED]

[REDACTED]

